

(3) For the purposes of this Schedule, the expression "rate" means a consolidated rate which includes a poor rate, a poor rate or a borough rate :

2ND SCH.
—cont.

Provided that, in a rating area in which both a poor rate and a borough rate were levied, provisions applicable to the borough rate shall not be deemed to be existing provisions if, or in so far as, inconsistent with the provisions applicable to the poor rate.

CHAPTER 9.

An Act to extend further the duration of the Local Authorities (Emergency Provisions) Act, 1923, and to amend temporarily the provisions as to the Metropolitan Common Poor Fund.

[10th May 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The provisions of the Local Authorities (Emergency Provisions) Act, 1923, mentioned in the Schedule to this Act shall, as amended by the Local Authorities (Emergency Provisions) Act, 1924, and by the Local Authorities (Emergency Provisions) Act, 1926, and by this Act, have effect as if for references therein to nineteen hundred and twenty-eight there were substituted references to nineteen hundred and thirty-two.

Further extension of duration of 13 & 14 Geo. 5. c. 6. 14 & 15 Geo. 5. c. 29. 16 & 17 Geo. 5. c. 10.

2.—(1) The board of guardians of every poor law union in London shall, not later—

Provisions as to metropolitan common poor fund.

(a) in the case of the half year commencing on the first day of April, nineteen hundred and twenty-eight, than twenty-one days after the passing of this Act ;

(b) in the case of any subsequent half year, than four weeks before the commencement of the half year ;

submit to the Metropolitan Asylums Board estimates in such form as the Minister of Health may prescribe of

the expenditure which they propose to incur during that half year for the several purposes in respect of which repayments are to be made out of the metropolitan common poor fund and of the amount so repayable, and may at any time during any half-year submit to them supplementary estimates.

(2) Upon examination of any such estimates submitted by a board of guardians under this section, and after consideration of any representations made to them on behalf of any board of guardians of a poor law union in London, the Metropolitan Asylums Board shall approve the estimates of the amounts repayable out of the metropolitan common poor fund either as submitted or subject to such reduction (if any) in respect of any specified purpose as the Metropolitan Asylums Board may think fit to make, and shall furnish the district auditor with a copy of the estimates as approved.

17 & 18
Geo. 5. c. 14.

(3) The district auditor in giving any certificate which he is required by section two hundred and two of the Poor Law Act, 1927, to give shall exclude therefrom any amount by which the expenditure of the board of guardians for any purpose so far as repayable out of the said fund exceeds the sum specified as so repayable in relation to that purpose in the estimates as approved by the Metropolitan Asylums Board, and the amount repayable to the said board of guardians out of the said fund shall be the sum so certified.

(4) In this section the expression "half-year" means any half-year fixed for the purpose of the audit of the accounts of boards of guardians in London.

11 & 12
Geo. 5. c. 67.

(5) This section shall apply to expenditure incurred after the thirty-first day of March, nineteen hundred and twenty-eight, in respect of any period during which section one of the Local Authorities (Financial Provisions) Act, 1921, as amended by any subsequent enactment is in operation.

Short title.

3. This Act may be cited as the Local Authorities (Emergency Provisions) Act, 1928, and the Local Authorities (Emergency Provisions) Acts, 1923 to 1926, and this Act may be cited together as the Local Authorities (Emergency Provisions) Acts, 1923 to 1928.

SCHEDULE.

Section 1.

PROVISIONS OF 13 & 14 GEO. 5. C. 6 CONTINUED.

Section of Act.

Subject Matter.

Section one - Continuance until the first day of April, nineteen hundred and twenty-four, subject to certain modifications, of section one of the Local Authorities (Financial Provisions) Act, 1921, which provides for the temporary extension of charges on the Metropolitan Common Poor Fund.

Section two - Substitution for "the first day of April, nineteen hundred and twenty-three," of the "first day of April, nineteen hundred and twenty-four," in the following provisions of the Local Authorities (Financial Provisions) Act, 1921; that is to say:—

(a) the proviso to subsection (3) of section three thereof (which enabled the Minister of Health in certain circumstances to extend the time within which sums borrowed under that section are to be repaid if borrowed before the first day of April first mentioned);

(b) Subsection (1) of section six thereof (which provided that money borrowed by a local authority before the first-mentioned first day of April for certain purposes is not to be reckoned as part of the debt of the local authority for the purposes of any enactment limiting the powers of borrowing by that authority);

(c) Subsection (2) of section six thereof (which suspended until the first-mentioned first day of April the operation of subsection (3) of section two hundred and thirty-four of the Public Health Act, 1875).

38 & 39 Vict.
c. 55.